Rajesh Kumar Gautam vs State Of U.P. on 27 April, 2024 Author: Sanjay Kumar Pachori Bench: Sanjay Kumar Pachori HIGH COURT OF JUDICATURE AT ALLAHABAD ?Neutral Citation No. - 2024:AHC:76135 Court No. - 70 Case :- CRIMINAL MISC. BAIL APPLICATION No. - 16318 of 2024 Applicant :- Rajesh Kumar Gautam Opposite Party :- State of U.P. Counsel for Applicant :- Anurag Yadav,Dr. C.P. Upadhyay Counsel for Opposite Party :- G.A. Hon'ble Sanjay Kumar Pachori,J. Heard Sri Anurag Yadav, learned counsel for the applicant, Sri Karunakar Singh, learned A.G.A for the State and perused the material on record. The present bail application has been filed on behalf of applicant Rajesh Kumar Gautam under Section 439 of the Code of Criminal Procedure, with a prayer to enlarge him on bail in Case Crime No. 123 of 2024 for offence punishable under Sections 419, 420, 471, 467, 468, 465, 120-B of the Indian Penal Code, registered at Police Station- Baghpat, District- Baghpat during pendency of the trial, after rejecting the bail application of the applicant by Additional Sessions Judge/ Fast Track Court No. 1, Baghpat vide order dated 07.03.2024. Rajesh Kumar Gautam vs State Of U.P. on 27 April, 2024 1

Learned counsel for the applicant submits that the applicant is innocent and has been falsely implicated in the present case due to ulterior motive. It is further submitted that the first information report dated 18.02.2024 has been lodged after five hours of arresting of four persons against the applicant and 10 other named persons by Sub- Inspector on the basis of recovery of arrest memo. It is further submitted that applicant was arrest after completion of his examination on 18.02.2024 at 2:30 p.m. It is further submitted that applicant is a candidate of examination of Police Constable. It is further submitted that no incriminating article has been recovered from the possession of the applicant. The alleged recovery of Rs. 400/-, identity card and mobile phone alleged to have been recovered without complying the mandatory provision of Section 100(4) of Cr.P.C. There is no independent or public witness of the alleged recovery. He has next argued that the applicant is languishing in jail since 18.02.2024 having no criminal history nor there is any likelihood of fleeing from course of justice or tempering with evidence in case of released on bail. Per contra, learned A.G.A. has opposed the prayer for bail of the applicant by contending that the innocence of the applicant cannot be adjudged at pre trial stage, therefore, he does not deserve any indulgence. In case the applicant is released on bail, he will again indulge in similar activities and will misuse the liberty of bail. It is well settled position of law that bail is the rule and committal to jail is an exception and refusal of bail is a restriction on the personal liberty of the individual guaranteed under Article 21 of the Constitution [Vide State of Rajasthan Vs. Balchand @ Baliay (1977) 4 SCC 308 Gudikanti Narasimhulu And Ors Vs. Public Prosecutor, High Court Of Andhra Pradesh, AIR 1978 SC 429 and Satender Kumar Antil Vs. Central Bureau of Investigation & Another, (2021) 10 SCC 773.] Keeping in mind, larger mandate of Article 21 of the constitution of India, the nature of accusations, the nature of evidence in support thereof, the severity of punishment which conviction will entail, the character of the accused-applicant, circumstances which are peculiar to the accused, reasonable possibility of securing the presence of the accused at the trial, reasonable apprehension of the witnesses being tampered with, the larger interest of the public/ State and other circumstances, but without expressing any opinion on the merits, I am of the view that it is a fit case for grant of bail. Let applicant, Rajesh Kumar Gautam be released on bail in the aforesaid case crime number on his furnishing a personal bond and two reliable sureties each in the like amount to the satisfaction of the court concerned subject to the following conditions: (i) The applicant shall not directly or indirectly make any inducement, threat, or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the court or to any police officer or tamper with the evidence. (ii) The applicant shall not pressurize/intimidate the prosecution witnesses. Rajesh Kumar Gautam vs State Of U.P. on 27 April, 2024 2

(iii) The applicant shall remain present, in person, before the trial court on the dates fixed for (i) opening of the case, (ii) framing of charge and (iii) recording of statement under Section 313 of Cr.P.C. (iv) The applicant shall file an undertaking to the effect that he shall not seek any adjournment on the dates fixed for evidence when the witnesses are present in the trial court. (v) The applicant shall remain present before the trial court on each date fixed, either personally or through his counsel. (vi) The applicant shall not indulge in any criminal activity or commission of any crime after being released on bail. In case of breach of any of the above conditions, it shall be a ground for cancellation of bail. If in the opinion of the trial court that absence of the applicant is deliberate or without sufficient cause, then it shall be open for the trial court to treat such default as abuse of liberty of bail and proceed in accordance with law. The trial court may make all possible efforts/endeavor and try to conclude the trial expeditiously in accordance with law after the release of the applicant, if there is no other legal impediment. It is made clear that the observations made in this order are limited to the purpose of determination of this bail application and will in no way be construed as an expression on the merits of the case. The trial court shall be absolutely free to arrive at its independent conclusions on the basis of evidence led unaffected by anything said in this order. The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the applicant along-with a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked. The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing. Order Date :- 27.4.2024 Vikram Rajesh Kumar Gautam vs State Of U.P. on 27 April, 2024 3